

		provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	Oliveros v. Shark Island Yacht Club, et al. 2021-01210803	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$125,569.93 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties to the settlement are plaintiff and defendant Shark Island Yacht Club. Defendant Patrick Allen Ramsey is in default. ROA 18. Plaintiff states he intends to dismiss Ramsey if and when Shark Island pays the settlement and a second sum plaintiff alleges is owed. Ginez Decl. (ROA 242) ¶ 27. Defendants Anton Anich and Brianna N. Warren also remain at issue. The court will not grant the approval motion and enter judgment thereon until plaintiff has resolved his claims against the individual defendants in some manner. 2. Why are the individual PAGA payments calculated "according to the total number of pay periods the Aggrieved Employee allegedly suffered a meal period violation, meal period premium pay violation, inaccurate wage statement violation, and/or final wage payment violation? Second Amendment to Settlement Agreement ¶ 14. How does this manner of calculation differ from calculating the individual PAGA payments according to the number of pay periods the aggrieved employee worked during the PAGA Period? 3. The aggrieved employees' release in paragraph V.1 of the second amendment to the settlement agreement is overbroad. Releases by aggrieved employees other than plaintiff should be limited the civil penalties available under PAGA based on the facts alleged in the operative complaint

		and the notice letter to the LWDA. In addition, the third-to-last sentence in paragraph V.1 should be removed. 4. The "Released Parties" provision in paragraph V.2 of the second amendment to the settlement agreement is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "affiliates, partners," "franchisors, and trusts," and "agents, attorneys, stockholders, fiduciaries, and other service providers including, but not limited to, O'Hagan Meyer." 5. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. Plaintiff's counsel seeks attorneys' fees totaling 33.33% of the gross settlement amount. Absent unique circumstances, and considering the manner in which the approval motion has been handled (see, e.g., ROA 209) the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 7. Plaintiff's counsel seeks litigation costs in the amount of \$12,933.33, comprised of \$4,220.83 in litigation costs and \$8,712.50 in purported expert fees incurred by plaintiff's counsel's sister, Olga Ginez. Plaintiff has not submitted any persuasive evidence that Olga Ginez qualifies as an expert to analyze payroll records and prepare damages calculations. Olga Ginez's declaration states that she is "retired," but still does "some consulting, bookkeeping, financial reporting, and general accounting services for individuals and businesses." Olga Ginez Decl. (ROA 234) ¶ 1. Olga Ginez states she has a bachelor's degree in criminal justice with a minor in business administration, and that her "career in accounting" includes having "audited profit and loss statements, prepared, and filed payroll and sales tax returns, and reconciled balance sheet accounts for a variety of businesses, including race car builder and auto sales, small construction companies, hair salons, donut shops, and fast food and full service restaurants," and "managing extensive amounts of data using Microsoft Access and Excel and utilizing reports to file forms and documents with state regulators including the Departments of Insurance, Corporations, and Securities in all 50 states." <i>Id.</i> ¶ 2. Plaintiff has not submitted evidence of Olga Ginez's "special knowledge, skill, experience, training, or education" sufficient to qualify her as an expert
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		on the calculation of damages in a wage and hour action. Evid. Code § 720(a). Olga Ginez’s relevant experience appears to consist of the six times in a 10-year period that plaintiff’s counsel (her brother) retained her to “audit time and payroll data and prepare damage calculations” in wage and hour actions. <i>Id.</i> ¶ 3. In addition, 102.50 hours (i.e., approximately 13 days of work at 8 hours per day) spent on this action with approximately 33 aggrieved employees and a one-year PAGA period appears excessive and unreasonable, especially where Olga Ginez’s time entries reflect that significant portions of her time were spent “compiling, summarizing and comparing” payroll data and “compiling date [<i>sic</i>], etc.” Olga Ginez Decl. (ROA 234) Ex. 3. Plaintiff’s counsel should provide additional information sufficiently establishing Olga Ginez’s qualifications as an expert and explaining why Olga Ginez reasonably spent 102.50 hours on her work related to this case. 8. Plaintiff should submit a copy of the settlement agreement for the settlement of his individual claims. Ginez Decl. ¶ 21; Oliveros Decl. (ROA 232) ¶ 11. <u>As to the notice letter:</u> 9. The notice letter should be revised consistent with the above. 10. The word “vigorously” should be removed in section of the notice letter. 11. The fourth paragraph of section 6 should be removed. 12. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator’s website for at least 180 days. 13. Should the notice letter be provided in any language other than English? See Green Decl. (ROA 236) Ex. B (charge for Spanish translation). If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 254):</u> 14. The proposed order and judgment should be revised consistent with the above.
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9	Reyna v. Eagle Community Credit Union 2021-01225885	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$150,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; \$37,500.00 for attorneys' fees; \$12,857.47 for attorneys' costs; \$4,138.00 for settlement administration fees; and